

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1211
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-719, Arizona Revised Statutes, is amended to
3 read:

4 13-719. Lifetime injunction: offenses: registration:
5 previously sentenced defendants

6 A. At the time of sentencing, on the request of the victim or the
7 prosecutor, the superior court shall issue an injunction that prohibits
8 the defendant from contacting the victim if the defendant is convicted of
9 any of the following offenses, whether completed or preparatory:

10 1. A dangerous offense as defined in section 13-105 that is a
11 felony.

12 2. A serious offense or violent or aggravated felony as defined in
13 section 13-706.

14 3. A felony offense included in chapter 14 or 35.1 of this title.

15 4. A felony offense as set forth in section 13-1204, subsection B.

16 5. A felony offense as set forth in section 13-1424.

17 6. A felony offense as set forth in section 13-2923.

18 7. A FELONY OFFENSE ~~[AS SET FORTH IN SECTION 13-2921.01]~~ INVOLVING
19 DOMESTIC VIOLENCE AS DEFINED IN SECTION 13-3601.

20 B. An injunction issued pursuant to subsection A of this section is
21 effective immediately and shall be served on the defendant at the time of
22 sentencing.

23 C. The court shall provide information to the department of public
24 safety to register the injunction with the national crime information
25 center and shall notify the victim of the injunction.

26 D. If the victim did not request an injunction at the time of
27 sentencing pursuant to subsection A of this section or the sentencing
28 occurred before September 24, 2022, the victim may submit a petition to

1 the superior court requesting an injunction against a defendant who was
2 sentenced for an offense listed in subsection A of this section, and the
3 court may not charge a fee for filing the petition. A law enforcement
4 agency shall serve an injunction issued pursuant to this subsection at no
5 charge to the victim.

6 E. An injunction that is issued pursuant to this section does not
7 expire and is valid for the defendant's natural lifetime unless any of the
8 following occurs:

9 1. The defendant makes a showing to the court that either:

10 (a) The victim has died.

11 (b) The conviction has been dismissed, expunged or overturned or
12 the defendant has been pardoned.

13 2. The victim submits a written request to the court for an early
14 expiration. The court may hold a hearing to verify the victim's request
15 to dismiss the injunction.

16 F. Notwithstanding any other law, a conviction that is designated a
17 misdemeanor pursuant to section 13-604, set aside pursuant to section
18 13-905 or sealed pursuant to section 13-911 does not affect the validity
19 of a lifetime injunction that is issued pursuant to this section and does
20 not prohibit a victim from submitting a petition to the superior court
21 requesting a lifetime injunction.

22 Enroll and engross to conform

23 Amend title to conform

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H: NM/lr

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